where the latitude 32 deg. 40 min. north of the equator intersects the same, running thence along the same parallel of latitude, a due east course, to the Tombigbee river, thence up the said Tombigbee river, to where the latitude of 32 deg. 43 min. 52 sec. intersects the same, thence along the same parallel of latitude, a due west course, to the Mississippi; thence down the said river, to the place of beginning; the said described tract containing 500,000 acres, and is the same which was conveyed by Nathaniel Prime to Oliver Phelps, by deed, dated the 27th of February 1796, and of which the said Phelps conveyed four-fifths to Benjamin Hichborn and the said Peck, by deed, dated the 8th of December 1800; the said tract of 500,000 acres being part of a tract which James Greenleaf conveyed to the said N. Prime, by deed, dated the 23d of September 1795, and is parcel of that tract which James Gunn, Matthew McAllister, George Walker, Zachariah Cox, Jacob Walburger, William Longstreet and Wade Hampton, by deed, dated 22d of August 1795, conveyed to the said James Greenleaf; the same being part of that tract which was granted by letters-patent under the great seal of the state of Georgia, and the signature of George Matthews, Esq., governor of that state, dated the 13th of January 1795, to the said James Gunn and others, under the name of James Gunn, Mathew McAllister and George *Walker and their associates, and their heirs and assigns, in fee-simple, [*88
under the name of the Georgia Company; which patent was issued by virtue of an act of the legislature of Georgia, passed the 7th of January 1795, entitled "an act supplementary to an act for appropriating part of the unlocated territory of this state, for the payment of the late state troops, and for other purposes therein mentioned, and declaring the right of this state to the unappropriated territory thereof, for the protection and support of the frontiers of this state, and for other purposes." That Peck, in his deed to Fletcher, covenanted "that the state of Georgia aforesaid was, at the time of the passing of the act of the legislature thereof (entitled as aforesaid), legally seised in fee of the soil thereof, subject only to the extinguishment of part of the Indian title thereon. And that the legislature of the said state, at the time of passing the act of sale aforesaid, had good right to sell and dispose of the same, in manner pointed out by the said act. And that the governor of the said state had lawful authority to issue his grant aforesaid, by virtue of the said act. And further, that all the title which the said state of Georgia ever had in the afore-granted premises had been legally conveyed to the said John Peck, by force of the conveyances aforesaid. And further, that the title to the premises so conveyed by the state of Georgia, and finally vested in the said Peck, had been in no way constitutionally or legally impaired by virtue of any subsequent act of any subsequent legislature of the said state of Georgia." The breach assigned in the first count was, that at the time the said act of 7th of January 1795, was passed, "the said legislature had no authority to sell and dispose of the tenements aforesaid, or of any part thereof, in the manner pointed out in the said act."

The 2d count, after stating the covenants in the deed as stated in the first count, averred, that at Augusta, in the said state of Georgia, on the 7th day of January 1795, the said James Gunn, Mathew McAllister *and [*89
George Walker promised and assured divers members of the legislature of the said state, then duly and legally sitting in general assembly of

the said state, that if the said members would assent to and vote for the passing of the act of the said general assembly, entitled as aforesaid, the same then being before the said general assembly in the form of a bill, and if the said bill should pass into a law, that such members should have a share of, and be interested in, all the lands, which they the said Gunn, McAllister and Walker, and their associates, should purchase of the said state, by virtue of and under authority of the same law: and that divers of the said members to whom the said promise and assurance was so made as aforesaid, were unduly influenced thereby, and under such influence, did then and there vote for the passing the said bill into a law; by reason whereof, the said law was a nullity, and from the time of passing the same as aforesaid was, ever since has been, and now is, absolutely void and of no effect whatever; and that the title which the said state of Georgia had in the afore-granted premises, at any time whatever, was never legally conveyed to the said Peck, by force of the conveyances aforesaid."

The third count, after repeating all the averments and recitals contained in the second, further averred, that after the passing of the said act, and of the execution of the patent aforesaid, the general assembly of the state of Georgia, being a legislature of that state subsequent to that which passed the said act, at a session thereof, duly and legally holden at Augusta, in the said state, did, on the 13th of February 1796, because of the undue influence used as aforesaid, in procuring the said act to be passed, and for other causes, pass another certain act in the words following, that is to say, "An act declaring null and void a certain usurped act passed by the last legislature of this state, at Augusta, the 7th day of January 1795, under the pretended title of 'an act supplementary to an act entitled an act for appropri-

*90] ating a part of the unlocated *territory of the state for the payment of the late state troops, and for other purposes therein mentioned, declaring the right of this state to the unappropriated territory thereof for the protection of the frontiers, and for other purposes,' and for expunging from the public records the said usurped act, and declaring the right of this state to all lands lying within the boundaries therein mentioned:" By which, after a long preamble, it is enacted, "That the said usurped act passed on the 7th of January 1795, entitled, &c., be, and the same is hereby declared, null and void, and the grant or grants, right or rights, claim or claims, issued, deduced or derived therefrom, or from any clause, letter or spirit of the same, or any part of the same, is hereby also annulled, rendered void and of no effect; and as the same was made without constitutional authority, and fraudulently obtained, it is hereby declared of no binding force or effect on this state, or the people thereof, but is and are to be considered, both law and grant, as they ought to be, *ipso facto*, of themselves, void, and the territory therein mentioned is also hereby declared to be the sole property of the state, subject only to the right of treaty of the United States to enable the state to purchase, under its pre-emption right, the Indian title to the same." The 2d section directed the enrolled law, the grant, and all deeds, contracts, &c., relative to the purchase, to be expunged from the records of the state, &c. The 3d section declared, that neither the law nor the grant, nor any other conveyance or agreement relative thereto, shall be received in evidence in any court of law or equity in the state so far as to establish a right to the territory, or any part thereof, but they may be received in evi-

dence in private actions between individuals for the recovery of money paid upon pretended sales, &c. The 4th section provided for the repayment of money, funded stock, &c., which may have been paid into the treasury, provided it was then remaining *therein, and provided the repayment should be demanded within eight months from that time. The 5th [*91 section prohibited any application to congress, or the general government of the United States, for the extinguishment of the Indian claim; and the 6th section provided for the promulgation of the act. The count then assigned a breach of the covenant in the following words, viz: "And by reason of the passing of the said last-mentioned act, and by virtue thereof, the title which the said Peck had, as aforesaid, in and to the tenements aforesaid, and in and to any part thereof, was constitutionally and legally impaired, and rendered null and void."

The 4th count, after reciting the covenants as in the first, assigned as a breach, "that at the time of passing of the act of the 7th of January 1795, the United States of America were seised in fee-simple of all the tenements aforesaid, and of all the soil thereof, and that, at that time, the State of Georgia was not seised in fee-simple of the tenements aforesaid, or of any part thereof, nor of any part of the soil thereof, subject only to the extinguishment of part of the Indian title thereon."

The defendant pleaded four pleas, viz: 1st plea. As to the breach assigned in the first count, he said, that on the 6th of May 1789, at Augusta, in the state of Georgia, the people of that state, by their delegates, duly authorized and empowered to form, declare, ratify and confirm a constitution for the government of the said state, did form, declare, ratify and conform such constitution, in the words following: [Here was inserted the whole constitution, the 16th section of which declares, that the general assembly shall have power to make all laws and ordinances *which they shall deem necessary and proper for the good of the state, which shall not [*92 be repugnant to this constitution.] The plea then averred, that until and at the ratification and confirmation aforesaid of the said constitution, the people of the said state were seised, among other large parcels of land and tracts of country, of all the tenements described by the said Fletcher in his said first count, and of the soil thereof, in absolute sovereignty, and in fee-simple (subject only to the extinguishment of the Indian title to part thereof); and that upon the confirmation and ratification of the said constitution, and by force thereof, the said state of Georgia became seised in absolute sovereignty, and in fee-simple, of all the tenements aforesaid, with the soil thereof, subject as aforesaid; the same being within the territory and jurisdiction of the said state, and the same state continued so seised in fee-simple, until the said tenements and soil were conveyed, by letters-patent, under the great seal of the said state, and under the signature of George Matthews, Esq., governor thereof, in the manner and form mentioned by the said Fletcher in his said first count. And the said Peck further said, that on the 7th of January 1795, at a session of the general assembly of the said state, duly holden at Augusta, within the same, according to the provisions of the said constitution, the said general assembly, then and there possessing all the powers vested in the legislature of the said state, by virtue of the said constitution, passed the act above mentioned by the said Fletcher in the assignment of the breach aforesaid, which act is in the words following,